24STCCV10566 24STCCV10566

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 24STCCV10566 Hearing Date: June 30, 2026 Dept: 732

Elvis Andzhunyan v. FCA US, LLC, et al.

Tuesday, June 30, 2026

CASE NUMBER: 24STCCV10566

OPPOSED

Plaintiff Elvis Andzhunyan’s Motion for Attorney Fees, Costs, and Expenses

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Facts: This is a lemon law action. The Complaint alleges as follows. Plaintiff Elvis Andzhunyan (Plaintiff) lease a 2022 Jeep Gladiator in July 2022, with an express written warranty. (Complaint ¶¶ 4–6.) During the warranty period, the vehicle contained or developed various defects that left it out of conformity with warranty. (Complaint ¶ 7.)

Procedural History: Plaintiff filed the Complaint on April 26, 2024, alleging 12 causes of action:

Breach of Implied Warranty of Merchantability

Breach of Implied Warranty of Fitness

Breach of Express Warranty

Failure to Promptly Repurchase

Failure to Commence Repairs in Reasonable Time

Failure to Complete Repairs in 30 Days

Failure to Maintain Sufficient Service and Repair Facilities

Failure to Make Service Literature and Parts Available

Advertising Defective Merchandise without Disclosures

Conversion

Negligence

Civ. Code § 1796.5

On December 5, 2024, this court denied Plaintiff's motions to compel and deem matters admitted as moot.

Trial was scheduled to begin on October 14, 2025. On that date, the parties informed the court that settlement had been reached.

Judgment was entered pursuant to the Code of Civil Procedure § 998 compromise on December 1, 2025.

Plaintiff filed the present motion for attorney fees on May 28, 2026.

Defendant filed an opposition on June 16, 2026.

Plaintiff filed a reply on June 23, 2026.

Analysis

MOTION FOR ATTORNEY FEES

Parties to litigation must generally bear their own attorney's fees, unless they otherwise agree. (Code Civ. Proc. § 1021.) However, the Song-Beverly Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code § 1794, subd. (d).)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion.” (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) In exercising its discretion, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (See id.)

In determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. “Fundamental to its determination . . . [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney . . . in the presentation of the case.” (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at p. 49.) “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV).) The Court in Serrano IV also stated that fees associated with preparing the motion to recover attorneys’ fees are recoverable. (See id. at p. 624.)

Plaintiff Elvis Andzhunyan (“Plaintiff”) seeks $170,765.00 in fees and costs following the settlement of the present Song Beverly lemon law action on the eve of trial. (Motion at p. 5.) This amount represents a lodestar of $85,382.50, plus costs and expenses of $5,941.56, plus a 2x lodestar multiplier. (Motion at p. 5.)

The lodestar reflects 158.55 hours of work performed by eight timekeepers across three firms, with hourly rates ranging from $200 for paralegals to $800 for one attorney. (Motion Exh. 43.) The mean hourly rate across timekeepers is $538.52.

The hourly rates charged are excessive. The “reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139.) The rates presented by Plaintiff here, ranging as high as $800 per hour, are excessive in light of the routine, non-complex nature of this litigation. The declaration supporting the rates for the California Lemon Law Center reveals no prior decisions in which the rates requested here were awarded. (Kasparian decl. 7 8.) The declaration of Martin Anderson shows that his requested $800 rate is in excess of that charged for other attorneys with similar experience. (Anderson Decl. ¶ 18.) And Defendant FCA US, LLC (“Defendant”) submittal of the 2023 Real Rate Report is persuasive for the conclusion that lower attorney rates than those proposed are proper, if not as low as those requested by Defendant here. (Santana Decl. Exh. A.)

Based on the permissible factors at play in this non-complex lemon law litigation, the court concludes that the reasonable hourly rate for partners does not exceed $550 per hour, and the hourly rate for other attorneys employed in this matter ought not to exceed $425 per hour. Applying these factors to the timekeepers here, the following reductions apply to the following timekeepers:

Aram Aslanian: $5,895.00

Lucy Kasparian: $2,820.00

Martin W. Anderson: $4,221.25

Elizabeth Meehan: $5,415.00

Shawna M. Melton: $200

This together yields a lodestar reduction of $18,251.25, to a new lodestar of $67,131.25.

Defendant also identifies various entries that it contends reflects unreasonable time spent or duplicative work performed on various tasks. (Opposition at pp. 6–9.) Defendant’s arguments are persuasive for the following identified charges, yielding the enumerated reductions:

9/19/2025: 1.1 hours by EM for redundant review and revision of trial documents already reviewed in prior entries: $467.50;

5/20/2026: 2.4 hours sought for research into case law surrounding motion for attorney fees and preparing memorandum, properly reduce by one hour: $425;

5/27/2026: 0.9 hours billed for further review of attorney fees motion memorandum, duplicative of other entries: $382.50;

8/21/2024: 2.5 hours to draft a meet and confer letter regarding discovery, properly reduced by 1.5 hours: $$637.50;

10/2, 10/4, 11/19, 11/24, 11/26/2024: 12 hours sought for a motion to compel that was denied by the court as having been rendered moot on the date it was filed, and predicated upon erroneous argument concerning Defendant’s waiver of objections: $5,100.00;

Accordingly, the lodestar is further reduced by $7,012.50. This yields a new lodestar of $60,118.75.

No lodestar multiplier is appropriate in this case. “Once the court has fixed the lodestar, it may increase or decrease that amount by applying a positive or negative ‘multiplier’ to take into account a variety of other factors, including the quality of the representation, the novelty and complexity of the issues, the results obtained, and the contingent risk presented.” (Thayer v. Wells Fargo Bank., N.A. (2001) 92 Cal.App.4th 819, 833.) The court’s file and the billings submitted in support of the motion demonstrate that this lemon law case, which did not proceed to trial, was not particularly novel or complex.

Accordingly, the motion for attorney fees is GRANTED in the amount of $60,118.75 in fees and $5,941.56 in costs and expenses.

Superior Court of California

County of Los Angeles

Department 732

elvis andzhunyan,

Plaintiff

v.

FCA US, LLC., et al.,

Defendants.

Case No.: 24STCV10566

Hearing Date: June 30, 2026

[TENTATIVE] RULING RE:

Plaintiff ELVIS ANDZHUNYAN" S mOTION FOR aTTORNEYs FEES, COSTS AND EXPENSES

Plaintiff Elvis Andzhunyan's Motion For Attorneys Fees, Costs and Expenses is GRANTED in the amount of $60,118.75 in fees and $5,941.56 in costs and expenses.

Plaintiff to give notice.

Dated: June 30, 2026

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Hon. Richard S. Kemalyan

Judge of the Superior Court